

Chhena v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 May 2016 · WRIT - C No. - 21022 of 2016 · **Writ disposed; relegated to clause 6.5(b); recovery stayed.**

HEADNOTE

A consumer who disputes the accuracy of an electricity bill and challenges recovery of outstanding dues must complain to the competent authority under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. The High Court declined to examine disputed questions of fact in writ jurisdiction, relegated the petitioner to that remedy on a short timetable, stayed recovery pending the complaint, and directed restoration of supply upon deposit of the amount.

FACTUAL SUMMARY

The petitioner, Chhena, approached the Allahabad High Court by a writ petition challenging recovery proceedings initiated by the respondent electricity corporation for outstanding dues. He disputed the correctness of the bill on which recovery had been commenced. Counsel for the State and for the corporation were heard. The connection had been disconnected, as the Court also addressed restoration of supply. The petition was heard and disposed of on 9 May 2016.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill-accuracy-dispute

HOLDING

Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 provides the complaint before the competent authority where a consumer disputes the accuracy of a bill. Because disputed questions of fact were involved and that statutory remedy was available, the writ petition was disposed of with liberty to complain under clause 6.5(b) within one week; the authority was directed to consider and decide the complaint in accordance with law within two weeks. Recovery was to remain in abeyance for four weeks or until disposal of the complaint, whichever was earlier, and to abide the authority's order. Upon the petitioner depositing the amount, the electricity connection was to be restored forthwith. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND THE RECOVERY FOUNDED ON IT

Left to a clause 6.5(b) complaint because disputed questions of fact were involved. ¶ 1